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U.S. Customs and Border Protection

May 18, 2026

PUBLIC VERSION

Coalition of Freight Coupler Producers
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RE: EAPA Case 8183 – Notice of Determination as to Evasion

To the Counsel and Representatives of the above-referenced entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Investigation 8183, U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that The Greenbrier Companies, Inc.[1] (Greenbrier) evaded the antidumping (AD) duty order A-201-857 on certain freight rail couplers and parts thereof (FRCs) from Mexico and/or the antidumping (AD) duty order and countervailing duty (CVD) orders, A-570-145 and C-570-146, on FRCs from the People's Republic of China (China) (collectively, the *FRC Orders*).[2] CBP determined that there is substantial evidence that Greenbrier evaded the *FRC Orders* by failing to file entries for consumption for FRCs imported into the United States. As a result, no cash deposits were applied to the merchandise at the time of entry. The basis for CBP's determination is explained below.

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[1] The Greenbrier Companies, Inc. (formerly Gunderson) is the parent company of Greenbrier Central LLC (Greenbrier Central), Greenbrier Concarril S.de R.L. de C.V (Greenbrier Concarril), Greenbrier Leasing Company LLC (Greenbrier Leasing), Greenbrier-GIMSA, LLC (Greenbrier-GIMSA), Gunderson-GIMSA S.A. de C.V. (Gunderson GIMSA) and Gunderson Concarril S.A. de C.V (Gunderson Concarril).

[2] *See Certain Freight Rail Couplers and Parts Thereof from Mexico: Antidumping Duty Order, 88 FR 78308 (November 15, 2023); Certain Freight Rail Couplers and Parts Thereof from the People's Republic of China: Antidumping Duty Order,* 88 FR 45138 (July 14, 2023)*; and Certain Freight Rail Couplers and Parts Thereof from the People's Republic of China: Countervailing Duty Order,* 88 FR 45135 (July 14, 2023).

The *FRC Orders* define the scope of covered merchandise as follows:[3]

> Freight railcar couplers are composed of two main parts, namely knuckles and coupler bodies but may also include other items (*e.g.*, coupler locks, lock lift assemblies, knuckle pins, knuckle throwers, and rotors). The parts of couplers that are covered by the order include: (1) E coupler bodies, (2) E/F coupler bodies, (3) F coupler bodies, (4) E knuckles, and (5) F knuckles, as set forth by the Association of American Railroads (AAR). The freight rail coupler parts (*i.e.*, knuckles and coupler bodies) are included within the scope of the order when imported separately. Coupler locks, lock lift assemblies, knuckle pins, knuckle throwers, and rotors are covered merchandise when imported in an assembly but are not covered by the scope when imported separately.
>
> Subject freight railcar couplers and parts are included within the scope whether finished or unfinished, whether imported individually or with other subject or non-subject parts, whether assembled or unassembled, whether mounted or unmounted, or if joined with non-subject merchandise, such as other non-subject parts or a completed railcar. Finishing includes, but is not limited to, arc washing, welding, grinding, shot blasting, heat treatment, machining, and assembly of various parts. When a subject coupler or subject parts are mounted on or to other non-subject merchandise, such as a railcar, only the coupler or subject parts are covered by the scope.
>
> The finished products covered by the scope of this order meet or exceed the AAR specifications of M-211, "Foundry and Product Approval Requirements for the Manufacture of Couplers, Coupler Yokes, Knuckles, Follower Blocks, and Coupler Parts" and/or AAR M-215 "Coupling Systems," or other equivalent domestic or international standards (including any revisions to the standard(s)).
>
> The country of origin for subject couplers and parts thereof, whether fully assembled, unfinished or finished, or attached to a railcar, is the country where the subject coupler parts were cast or forged. Subject merchandise includes coupler parts as defined above that have been further processed or further assembled, including those coupler parts attached to a railcar in third countries. Further processing includes, but is not limited to, arc washing, welding, grinding, shot blasting, heat treatment, painting, coating, priming, machining, and assembly of various parts. The inclusion, attachment, joining, or assembly of non-subject parts with subject parts or couplers either in the country of manufacture of the in-scope product or in a third country does not remove the subject parts or couplers from the scope. …

I. <u>Background & Procedural History (Pre-Interim Measures)</u>

Allegations, Formal Receipt, and Initiation

[3] *Id.*

On March 5, 2025, the Coalition of Freight Coupler Producers (the Alleger)[4] filed an EAPA allegation against Greenbrier, and on April 18, 2025 it supplemented the allegation.[5] On April 24, 2025, in accordance with 19 C.F.R. § 165.12(a), the Trade Remedy Law Enforcement Directorate (TRLED), within CBP's Office of Trade, acknowledged receipt of the properly filed Allegation.[6]

To support its Allegation, the Alleger provided:

1. An affidavit from mes and Title] affirming Greenbrier imported couplers into the United States without paying the applicable AD/CVD duties based on [Person] conversations with officials from [Name and Action].[7]

2. A [Information from Source]report regarding Greenbrier's business activities, notably:

   - Greenbrier has significant manufacturing operations in Mexico for the production of new railcars.[8]
   - The company had plans in 2024 to deliver 25,000 cars globally and has a sizeable presence in the North American railcar market, holding a 39 percent overall share of the order portfolio of around 37,000 railcars among U.S. manufacturers that year.[9]
   - Greenbrier [Information from Source] .][10]
   - A copy of [Information from Source].[11]

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[4] The Alleger's members include McConway & Torley, LLC (a producer of the domestic like product in the United States) and the United Steel, Paper and Forestry, Rubber, Manufacturing, Energy, Allied Industrial Service Workers International Union; therefore, it qualifies for interested party status pursuant to 19 U.S.C. § 1517(a)(6) and 19 C.F.R. §165.1.

[5] *See* the Alleger's letters, "Certain Freight Rail Couplers and Parts Thereof from Mexico and the People's Republic of China: Request for an Investigation under the Enforce and Protect Act," dated March 5, 2025 (March 5, 2025 Allegation); and "Certain Freight Rail Couplers and Parts Thereof from Mexico and the People's Republic of China: Supplemental Information to Request for an Investigation under the Enforce and Protect Act," dated April 18, 2025 (April 18, 2025 Allegation Supplement) (collectively, Allegation).

[6] *See* Email from CBP, "EAPA Case 8183 – Official Receipt of Allegations," dated April 24, 2025.

[7] *See* Allegation Supplement at Exhibit 4.

[8] *See* Allegation at Exhibit 1A for Greenbrier website, "Gunderson Rail Services Changes Name to Greenbrier Rail Services" indicating that "Greenbrier Rail Services operates one of the largest railcar service networks in North America with 35 strategically located facilities specializing in railcar repair and maintenance, complete wheel services, axle finishing, and the manufacturing and sale of freight car components, such as doors, cushioning units, couplers, yokes, and associated parts" in addition to building "new railroad freight cars in its three manufacturing facilities in the U.S. and Mexico and marine barges at its U.S. facility."

[9] *Id*. at Exhibit 4.

[10] *Id*.

[11] *Id*.

Na

- According to the [Information from Source
] to which couplers are attached.[12]

3. Trade data indicating Greenbrier imported individual FRCs from Mexico under HTS code 8607.30 during the period of investigation.[13]

Accordingly, CBP determined that the evidence on the record reasonably suggested that Greenbrier failed to declare that the Mexican-origin and/or Chinese-origin FRCs were covered merchandise on entry to the United States to evade paying duties pursuant to the *FRC Orders*. Consequently, CBP initiated the investigation on May 15, 2025, against Greenbrier shipments of merchandise that are alleged to be entered for consumption into the customs territory of the United States through evasion.[14] The shipments covered by this period of investigation (POI) are those entered for consumption, or withdrawn from warehouse for consumption, from April 24, 2024, through the pendency of this investigation.[15]

II. <u>Interim Measures & Post Interim Measures</u>

Interim Measures

Not later than ninety (90) calendar days after initiating an investigation under EAPA, TRLED will decide, based on the record of the investigation, if there is reasonable suspicion that merchandise covered by an AD or countervailing duty (CVD) order was entered into the United States through evasion.[16] CBP need only have sufficient evidence to support a reasonable suspicion that the importer alleged to be evading entered merchandise covered by an AD or CVD order into the United States by a materially false statement or act, or material omission that resulted in the reduction or avoidance of applicable AD or CVD cash deposits or other security. If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24.

After initiation, CBP issued three CF-28s to Greenbrier Central and Gunderson Concarril,[17] and conducted research on inconsistencies in Greenbrier trade data.[18] After evaluating the information on the record, CBP issued its Notice of Initiation of an Investigation and Interim Measures on August 20, 2025.[19] TRLED determined that there was a reasonable suspicion that Greenbrier failed to declare entries of covered merchandise as type 03, thus avoiding payment of

[12] *Id*.
[13] *See* Allegation at page 13 and Allegation Supplement at Exhibit 1.
[14] *See* CBP Memorandum to the File, "Initiation of Investigation for EAPA Case Number 8183," dated May 15, 2025 (Initiation Memo). *See also* 19 U.S.C. § 1517(b)(1); 19 C.F.R. § 165.15.
[15] *See* TRLED letter titled, "Notice of Initiation of Investigation and Interim Measures - EAPA Case 8183" (NOI), dated August 20, 2025.
[16] *See* 19 U.S.C. § 1517(e); *see also* 19 C.F.R. § 165.24(a).
[17] *See* June 6, 2025 CF-28 requests for information for entries [Code]9435, [Code]3566, and EMK-0135[#s].
[18] *See* CBP Memorandum to File, "Supplemental Information to the Administrative Record of EAPA Case 8183," dated August 11, 2025.
[19] *See* NOI.

the applicable cash deposits on those entries.[20] TRLED's findings were based on the record evidence at the time, namely the information provided in the Allegation—an affidavit from an [Information from Source] declarant; information from [Information from Source]; [Information from Source]; and trade data showing that Greenbrier imported individual FRCs from Mexico during the POI. TRLED also found multiple discrepancies between the Allegation's trade data and official CBP records, including a lack of detailed merchandise descriptions and inconsistent treatment of shipments containing merchandise with the same description.[21]

Requests for Information (RFI)

On August 27, 2025, CBP issued requests for information (RFI) to Greenbrier Central (railcar manufacturer in the United States) and Gunderson-GIMSA (railcar manufacturer in Mexico).[22] On September 4, 2025, CBP issued individual RFIs to Chinese suppliers Ningbo Tuoxing Precision Casting Co., Ltd. (Ningbo Tuoxing or Supplier I), Rizhao Jintai Machinery Manufacture Co., Ltd. (Rizhao Jintai or Supplier II), and Sichuan Y&J Industries Co., Ltd. (Sichuan Y&J or Supplier III).[23] On September 16, 2025, Greenbrier Central and Gunderson-GIMSA requested extensions to submit the RFI responses, which CBP granted.[24] On September 22, 2025, Ningbo Tuoxing and Sichuan Y&J requested extensions and on September 24, 2025, Rizhao Jintai requested an extension, which CBP granted.[25]

Letters for the Record

On October 10, 2025, CBP received a letter from Greenbrier's counsel requesting that CBP dismiss the EAPA investigation, arguing that there is no statutory basis for invoking EAPA.[26] Greenbrier asserted that the investigation was initiated based on inaccurate allegations and clear omissions by the Alleger, leading CBP to erroneously conclude that initiation under EAPA was appropriate."[27] In the letter, Greenbrier included copies of Commerce's preliminary and final scope determinations for the *FRC Orders*.[28] Greenbrier also included a copy of a March 2, 2023

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[20] *Id*.
[21] *See* NOI; *see also* Allegation at page 13 and Allegation Supplement at Exhibit 1.
[22] *See* CBP's RFI questionnaire to Greenbrier and Gunderson-GIMSA, "EAPA 8183 Request for Information," dated August 27, 2025.
[23] *See* CBP's RFI Questionnaires to Chinese Supplier I, Supplier II and Supplier III, "EAPA 8183 Request for Information, dated September 4, 2025.
[24] *See* CBP Memos granting extension of time for Greenbrier and Gunderson-GIMSA, "EAPA Case No. 8183 — Response to Greenbrier Central, LLC's September 16, 2025 and Request for Extension to Submit RFI Response," dated September 18, 2025.
[25] *See* CBP Memos granting extension of time for Supplier I, Supplier II and Supplier III: "EAPA Case No. 8183 – Response to [Name] September 22, 2025, Request for Extension to Submit RFI Response," dated September 22, 2025; "EAPA Case No. 8183 – Response to [Name] September 18. 2025, Request for Extension to Submit RFI Response," dated September 22, 2025; and "EAPA Case No. 8183 – Response to [Name] September 24, 2025, Request for Extension to Submit RFI Response," dated September 24, 2025, respectively.
[26] *See* Greenbrier's letter titled, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Greenbrier Central's Request To Dismiss Investigation," dated October 10, 2025 (October 10th Greenbrier's EAPA Case Dismissal Request).
[27] *Id.*
[28] *Id.* at Attachments 1 and 2.

Memo that Commerce issued regarding video calls with CBP, whereby CBP officials explained how rail cars could be exempt from entry requirements under 19 C.F.R. § 141.4(b)(3) and (b)(4) and how administering the *FRC Orders* could be difficult.[29]

On October 20, 2025, CBP received a letter from the Alleger opposing Greenbrier's request for dismissal.[30] The Alleger noted that [Transaction], which then [Movement Process].[31] The Alleger argued that [Description] does not qualify for status as instruments of international traffic (IIT) because [Transaction Process]; therefore, this makes the [Items] subject to entry requirements and payment of duties pursuant to AD/CVD orders.[32]

Furthermore, the Alleger contended that the Commerce March 2, 2023 Memo does not constitute a final agency decision regarding the issues at stake because Commerce issued its Final Scope Decision Memorandum on May 15, 2023, after the March 2, 2023 Memo.[33] According to the Alleger, the Commerce Final Scope Decision Memo clarified that FRCs attached to freight railcars are included in the scope of the AD/CVD investigation and therefore subject to duties.[34] As the Alleger highlighted, Commerce stated: "there is no reason for Commerce to not apply its practice, because the scope is clearly written to include freight rail couplers attached to railcars that enter the United States for consumption, and we find no overarching reason to modify the scope of the investigations."[35]

RFI Responses — Greenbrier[36]

On October 2, 2025, CBP received a timely RFI response from Greenbrier Central.[37] Greenbrier Central clarified that it does not prepare its own audited financial statements; rather its parent,

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[29] *Id.* at 4-5 and Attachment 3 for Commerce Memorandum to the File "Certain Freight Rail Couplers and Parts Thereof from Mexico and the People's Republic of China: Video Calls with Customs and Border Protection," dated March 2, 2023 (Commerce March 2, 2023 Memo).

[30] *See* the Alleger's response letter, "Certain Freight Rail Couplers and Parts Thereof from Mexico and the People's, Republic of China: Response to Request to Dismiss EAPA Investigation," dated October 20, 2025 (Alleger's Response to October 10th EAPA Case Dismissal Request).

[31] *Id.*

[32] *Id*. at 3.

[33] *Id*. at 4, citing Memorandum to James Maeder, Deputy Assistant Secretary, AD/CVD Operations From Erin Bengal, Director, Office III, AD/CVD Operations "Freight Rail Couplers from Mexico and the People's Republic of China: Final Scope Decision Memorandum," dated May 15, 2023 (Commerce Final Scope Decision Memo), included at Attachment 1 of October 10th Greenbrier's EAPA Case Dismissal Request.

[34] *Id.*

[35] *Id*. *See also* Commerce Final Scope Decision Memo, stating "CBP has not identified any overarching administrability concerns with assessing ADs/CVDs on freight rail couplers attached to freight railcars that enter the United States for consumption. CBP explained that if a freight railcar is subject to entry (*i.e.*, not exempt from entry under 19 C.F.R. § 141.4(b)(3) or (b)(4)), and an attached freight rail coupler is within the scope of an AD/CVD order, then a formal (type 03) consumption entry is required to assess and collect ADs/CVDs on the coupler for entry into the United States," included at Attachment 1 of October 10th Greenbrier's EAPA Case Dismissal Request.

[36] *See* Greenbrier's RFI response, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Greenbrier Central LLC's Response To The Importer Request For Information ("RFI")," dated October 2, 2025 (October 2nd Greenbrier's RFI Response).

[37] *Id.*

The Greenbrier Companies, prepares consolidated audited financial statements for all its affiliates, which include the results for Greenbrier Central.[38] The audited consolidated financial statements indicated that Greenbrier's operations include: design, manufacturing, the provision of freight railcar wheel services, railcar maintenance, sales of new railcars, sale of railcar component parts, regulatory compliance services, and leasing and fleet management services for the North American market.[39] Through affiliated companies, The Greenbrier Companies also produce rail and industrial components and hold an ownership stake in a railcar manufacturer in Brazil.[40] Greenbrier stated it operates in three segments: 1) Manufacturing; 2) Maintenance Services; and 3) Leasing and Management Services.[41]

CBP issued Greenbrier Central a first supplemental RFI (SRFI) on October 17, 2025, a second SRFI on October 27, 2025, and a third SRFI on November 21, 2025.[42] CBP granted Greenbrier's requests[43] for extensions of the deadlines to submit the responses until November 10, 2025, November 21, 2025, and December 5, 2025, respectively.[44]

On November 10, 2025, CBP received Greenbrier Central's timely response to the first SRFI.[45] Greenbrier reported that during the POI, Greenbrier Central produced [#s] new freight railcars in the United States, which required a total of [#s] freight rail couplers, as each railcar requires two couplers.[46] Specifically, " [Describing Production

].[47]

Greenbrier also explained in its first SRFI response that Greenbrier Central [Describing Transaction

].[48]

[38] *Id*. at 13 of 2265 at Exhibit II-2c for the consolidated audited financial statements for The Greenbrier Companies from August 31, 2024, and August 31, 2023. Greenbrier Central does not produce its own audited financial statements.
[39] *Id.*
[40] *Id*. at 141-142 of 2265 at Exhibit II-2c, pg. 4-5.
[41] *Id*. 472-3 of 2265.
[42] *See* CBP's SRFI questionnaire to Greenbrier, "EAPA 8183 - Supplemental Request for Information," dated October 17, 2025; *see* CBP's SRFI questionnaire to Greenbrier, "EAPA 8183 – Second Supplemental Request for Information," dated October 27, 2025; and *see* CBP's SRFI questionnaire to Greenbrier, "EAPA 8183 – Revised Third Supplemental Request for Information," dated November 21, 2025.
[43] See Letters from Greenbrier Central requesting extensions of time to submit SRFIs, dated October 22, 2025, November 4, 2025, November 13, 2025, and November 24, 2025.
[44] See CBP Memos to File granting Greenbrier Central extensions of time to submit SFRIs, dated October 27, 2025, November 7, 2025, November 17, 2025, and November 24, 2025.
[45] *See* Greenbrier's 1st SRFI response, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Greenbrier Central LLC's Response To The Importer First Supplemental Request For Information ("SRFI")," dated November 10, 2025 (Greenbrier's 1st SRFI response).
[46] *Id*. at 2.
[47] *Id.*
[48] *Id.*

Greenbrier stated that it does not [Transaction Movement].[49] According to Greenbrier, because a railcar is a complete article that is not subject to formal entry, there is no requirement to separately declare components of the railcar.[50] Specifically, Greenbrier noted that "CBP officials explained that if a freight railcar is exempt from entry under {19 C.F.R. § 141.4(b)(3)} and/or {19 C.F.R. § 141.4(b)(4)}, the exemption extends to the railcar's constituent components.[51] Thus, freight rail couplers are considered a constituent component of freight railcars, rendering the couplers exempt from entry so long as the couplers are attached to, or a part of, the exempted railcars."[52]

On November 19, 2025, the Alleger submitted comments in response to Greenbrier's and Gunderson-GIMSA's first SRFI responses, including questions it wanted CBP to ask in additional requests for information.[53] The Alleger argued that the evidence provided in the SFRI's clearly shows that [Name and Process] do not meet the definition of what qualifies for use of the entry exemption.[54] The Alleger also argues that the Commerce March 2, 2023 Memo is not a final agency decision and memorializes a conversation that occurred before the final scope determination for the *FRC Orders* was issued.[55]

On November 21, 2025, CBP received Greenbrier's timely response to the second SRFI, which provided coupler data, including inventory movement schedules of [Process] for Greenbrier Central, Gunderson-GIMSA, and Gunderson Concarril.[56]

On December 1, 2025, the Alleger submitted comments in response to Greenbrier's and Gunderson-GIMSA's second SRFI responses.[57] According to the Alleger, there were several inconsistencies in the responses. Specifically, the Alleger asserted that Greenbrier [Description] whether [Description] are involved in the entry of freight rail couplers, [Noun] is identified as the importer of record, and Greenbrier's affiliates are involved in the sale of railcars with mounted couplers, while continuing to [Action].[58] Additionally, the Alleger asserted that Greenbrier itself states that [Noun] affiliates sell railcars with mounted FRCs in its second SRFI responses, which suggests that

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[49] *Id.* at 8.
[50] *Id*.
[51] *Id.*, citing the October 10th Greenbrier's EAPA Case Dismissal Request at Attachment 3, which contains a copy of the Commerce March 2, 2023 Memo.
[52] *Id*.
[53] *See* the Alleger's response letter, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China: Comments on Greenbrier and GIMSA Responses to CBP's First Supplemental Requests For Information," dated November 19, 2025.
[54] *Id.* at 7.
[55] *Id.* at 7-8. *See also* October 10th Greenbrier's EAPA Case Dismissal Request at Attachment 1.
[56] *See* Greenbrier Central's 2nd SRFI response submission — "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Greenbrier Central LLC's Response To The Importer Second Supplemental Request For Information ("SRFI")," dated November 21, 2025 (Greenbrier Central's 2nd SRFI response) at 6-7 and Exhibit 2S-3 & 4
[57] *See* the Alleger's comments responding to the 2nd SRFI, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China: Comments on Greenbrier and GIMSA Responses to CBP's Second Supplemental Requests For Information," dated December 1, 2025.
[58] *Id.*

Greenbrier is the [Noun] for couplers entering the United States from its [Relation].[59]

On December 5, 2025, Greenbrier submitted a timely response to the third SRFI, providing clarification on railcar movement from the [Nouns].[60] Greenbrier explained the following regarding the railcar transactions:

> "[Name and Describing the Process from Beginning to End]. U.S. Customs, itself has recognized "the common industry practice that any locomotive or railcar in common commercial use will eventually be used in international traffic with Canada or Mexico during its regular use." … Thus, railcars from Mexico for which train sheets have been prepared properly cross into the United States as IITs."[61]

In its response, Greenbrier also noted that it understands that the railroad trains present a manifest and/or train sheet data to CBP for clearance and release when arriving from Mexico.[62] Greenbrier further understands that U.S. rail carriers move the railcars to a destination in the United States in coordination with the ultimate U.S. customer, who holds title to and bears the risk of loss of the railcars.[63] Greenbrier maintained that it uses reasonable care and is well aware of the active AD/CVD orders.[64]

Greenbrier reaffirmed that each railcar contains two couplers, and there is one knuckle per coupler.[65] Greenbrier stated that it generally procures finished freight rail couplers for use on railcars and, thus, does not have information regarding the origin of knuckles

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[59] *Id*. at 2-3. *See also* Greenbrier Central's 2nd SRFI response at Exhibit 2S-1.
[60] *See* Greenbrier Central's 3rd SRFI response submission — "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Greenbrier Central LLC's Response To The Amended Importer Third Supplemental Request For Information ("SRFI")," dated December 5, 2025 (Greenbrier Central's 3rd SRFI response).
[61] *Id*. at 1.
[62] *Id.* at 2.
[63] *Id*. at 2.
[64] *Id.* at 3.
[65] *Id.* at 7.

that are included in such couplers.[66] Greenbrier stated that it does not have visibility into the ultimate U.S. customer's use of their railcars.[67]

Regarding the sales process, Greenbrier explained that [Names and Transaction Process

].[70] Greenbrier further explained that [Process

].[71] Generally, [Transaction Process

].[72] Exhibit S-8c & 10 of GIMSA's First SRFI Response, dated November 10, 2025, includes [Transaction Process

]."[73] [Transaction Process

]."[74]

RFI Responses — Gunderson-GIMSA

On October 6, 2025, CBP received Gunderson-GIMSA's timely RFI response.[75] Gunderson-GIMSA S.A. de RL de CV, now Gunderson-GIMSA S.A. de C.V., was established in 2006 [Transaction], to manufacture new railcars in Frontera, Mexico.[76] Gunderson-GIMSA S.A. de RL de CV was restructured in 2012, and its correct name is Gunderson-GIMSA, S.A. de C.V.[77] Gunderson-GIMSA explained that its main business is to manufacture railcars in Mexico [Transaction Process].[78]

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66 *Id.* at 7.
67 *Id.*
68 *Id.* at 9.
69 *Id.* at 9.
70 *Id.*
71 *Id.*
72 *Id.*
73 *Id.*
74 *Id.*
75 *See* Gunderson-GIMSA RFI response, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Gunderson GIMSA S.A. de C.V.'s Response To The Manufacturer Request For Information ("RFI")," dated October 6, 2025 (October 6th Gunderson RFI response).
76 *Id.* at 3.
77 *Id.*
78 *Id.*

On October 17, 2025, October 28, 2025, and November 21, 2025, CBP issued SRFIs to Gunderson-GIMSA.[79] CBP granted Greenbrier's requests[80] for extensions of the deadlines to submit the responses until November 10, 2025, November 21, 2025, and December 5, 2025, respectively.[81]

On November 10, 2025, CBP received Gunderson-GIMSA's timely first SRFI response, providing the number of railcars manufactured and the FRC usage during the POI.[82] Gunderson-GIMSA indicated that it primarily sources new couplers from [Names].[83] Gunderson-GIMSA also [Transaction and Names].[84]

Gunderson-GIMSA clarified in the response that as a [Process for Movement].[85] Gunderson- GIMSA provided [Process for Movement].[86] Gunderson-GIMSA [Process for Movement].[87]

Similarly, as Greenbrier previously stated, the freight forwarder [Names and Process for Movement].[88]].[89] [Names and Process for Movement].[90]

On November 21, 2025, CBP received Gunderson-GIMSA's timely second SRFI response, which clarified that Gunderson-GIMSA's operations include manufacturing, final assembly,

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[79] *See* CBP's SRFI questionnaire to Gunderson-GIMSA, "EAPA 8183 - Supplemental Request for Information," dated October 17, 2025; *see* CBP's SRFI questionnaire to Gunderson-GIMSA, "EAPA 8183 – Second Supplemental Request for Information," dated October 28, 2025; and *see* CBP's SRFI questionnaire to Gunderson-GIMSA, "EAPA 8183 – Revised Third Supplemental Request for Information," dated November 21, 2025.
[80] See Letters from Gunderson-GIMSA requesting extensions of time to submit SRFIs, dated October 22, 2025, November 4, 2025, November 13, 2025, and November 24, 2025.
[81] See CBP Memos to File granting Gunderson-GIMSA extensions of time to submit SFRIs, dated October 27, 2025, November 7, 2025, November 17, 2025, and November 24, 2025.
[82] *See* Gunderson-GIMSA's 1st SRFI response submission, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Gunderson GIMSA S.A. de C.V.'s Response To The Manufacturer First Supplemental Request For Information ("SRFI")," dated November 10, 2025 (Gunderson-GIMSA 1st SRFI).
[83] *Id.* at 2-3.
[84] *Id*. at 3.
[85] *Id*. at 5.
[86] *Id.* at 5.
[87] *Id*.
[88] *Id.*
[89] *Id.* at 5-6.
[90] *Id*.

maintenance, and sale of complete railroad freight and tank cars, as well as the purchase and sale of railroad parts and components.[91] Similarly, Gunderson-Concarril operates two locations with similar functions.[92] [Transaction Process by Names].[93] The company explained that [Name and Status Location] and further that, besides GIMSA itself, [Name, Location and Transaction Status].[94]

On December 1, 2025, the Alleger submitted comments in response to Greenbrier's and Gunderson-GIMSA's second SRFI responses, noting discrepancies and insufficient and contradictory information.[95] For example, the Alleger highlighted that Greenbrier provided an exhibit that [Descriptive] any of the [#s] listed entities are involved in the formal or informal entry of freight rail couplers.[96] Greenbrier reported that [Relation] – including [Name] – are involved both in the attachment of couplers to railcars and the subsequent sales of railcars with couplers but also reports that [Noun] of the affiliated companies are the U.S. importer of record for the FRCs.[97] Greenbrier's supplier of [Noun] has previously indicated that it is [Noun], so [Noun] appears to be taking ownership of this position.[98] Identifying the [Noun] for each entry is essential for customs compliance.[99]

Greenbrier, the Alleger noted, indicates its affiliated entities are involved in sales of railcars with couplers mounted, specifically: [List of Names].[100] Exhibit 2S-1 describes [Name and Action].[101] The Alleger contended that this is of particular relevance to this investigation because Greenbrier has continued to insist that the railcars it enters into the United States with FRCs attached are [Status].[102]

[91] *See* Gunderson-GIMSA's 2nd SRFI response submission — "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Gunderson GIMSA S.A. de C.V.'s Response To The Manufacturer Second Supplemental Request For Information ("SRFI")" (Gunderson-GIMSA 2nd SRFI response), dated November 21, 2025.
[92] *Id*. at 6 Part I, Question 2.
[93] *Id*. at 7 Part I, Question 3.
[94] *Id*. at 7 Part I, Question 3.
[95] *See* Alleger's comments letter — "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China: Comments on Greenbrier and GIMSA Responses to CBP's Second Supplemental Requests For Information," dated December 1, 2025.
[96] *Id.* at 2.
[97] *Id.*
[98] *Id.* at 2-3.
[99] *Id*. at 2-3.
[100] *Id*. at 3.
[101] *Id.*
[102] *Id.*

On December 5, 2025, CBP received Gunderson-GIMSA's timely third SRFI response, clarifying railcar movement from the manufacture to the U.S. ultimate consignees.[103] Specifically, "[Name and Transaction Process

]."[104]

Gunderson-GIMSA repeated what it stated in its 1st SRFI response, namely that [Name and Movement Process
].[105] [Movement Process
].[106] Generally, [Movement Process
].[107]

Gunderson-GIMSA explained that it does not have visibility into the ultimate U.S. customer's use of its railcars.[108] It reaffirmed that each railcar contains two couplers and there is one knuckle per coupler.[109] Gunderson-GIMSA generally procures finished FRCs for use on railcars; thus, it does not have information regarding the origin of knuckles that are included in such couplers.[110]

On December 15, 2025, the Alleger submitted comments in response to Greenbrier's and Gunderson-GIMSA's third SRFI responses.[111] The Alleger urged CBP to apply adverse inferences in the investigation because, according to the Alleger, both Greenbrier's and Gunderson-GIMSA's RFI submissions failed to provide information that is critical to CBP's investigation.[112]

Other RFI Responses

<u>Supplier I: Ningbo Tuoxing</u>

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[103] *See* Gunderson-GIMSA's response at Question 1, page 1, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Gunderson GIMSA S.A. de C.V.'s Response To The Amended Manufacturer Third Supplemental Request For Information ("SRFI")," dated December 5, 2025 (Gunderson-GIMSA 3rd SRFI response).
[104] *Id.* at 9.
[105] *Id*. at 1.
[106] *Id.*
[107] *Id*. at 9.
[108] *Id*. at 7.
[109] *Id.*
[110] *Id.*
[111] *See* Alleger's comments letter, "EAPA Case No. 8183: Certain Freight Rail Couplers and Parts Thereof from Mexico & The People's Republic of China: Comments on Greenbrier Central LLC's and Gunderson GIMSA S.A. de C.V.'s Third SRFI Responses," dated December 15, 2025.
[112] *Id.*

On September 29, 2025, CBP received a timely RFI response from Chinese Supplier I, Ningbo Tuoxing, located in Ningbo, Zhejiang, China.[113] In its RFI response, Ningbo Tuoxing stated that it did not manufacture, sell, or export any FRCs, knuckles, coupler bodies, or any other parts thereof during the POI.[114] Ningbo Tuoxing stated it supplies entirely different precision-casting components (using the water-glass shell process) of carbon steel, low-alloy steel, and stainless-steel components, which fall outside the scope of the *FRC Orders*.[115] Ningbo Tuoxing said its primary products are mechanical parts for the automotive, mining, heavy machinery, engineering machinery, general machinery, and agricultural machinery industries.[116]

<u>Supplier II: Rizhao Jintai</u>

On October 12, 2025, CBP received a timely RFI response from Chinese Supplier II, Rizhao Jintai, located in the Rizhao Economic Development Zone in Shandong, China.[117] Per its RFI response, Rizhao Jintai is a Sino-foreign joint venture founded at the end of 2005.[118] The company is a mechanical processing enterprise that integrates mold manufacturing, precision forging, mechanical processing, heat treatment and finished product packaging.[119] The scope of Rizhao Jintai's business is developing, manufacturing, and selling various high-end slings, automotive parts, rail transit parts, and other forging products.[120] Rizhao Jintai sold covered merchandise and other parts to Greenbrier during the POI.[121]

<u>Supplier III: Sichuan Y&J</u>

On October 10, 2025, CBP received a timely RFI response from Chinese Supplier III, Sichuan Y&J, located in Chengdu, China.[122] Sichuan Y&J states that since April 24, 2024, to the present, it has exported 11 parts to Greenbrier.[123] The 11 parts consist of four categories: (1) adaptors, valve pneumatic outlets right and left handles assembled on the hopper cars; (2) bodies of bottom outlet valves used on tank cars; (3) long and short handles mounted on hatch covers; and (4) support fixed on the cars to fasten the rod.[124] Sichuan Y&J said it is dedicated to supplying customized mechanical parts and components and engineering solutions, covering various sectors of oil and gas, construction and mining, water works and fire-fighting, *etc*.[125] The products, mainly manufactured through a casting and machining process, are exported to numerous countries and regions.[126]

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[113] *See* Ningbo Tuoxing's RFI response, "EAPA Case No. 8183 – Response to the Request for Information Issued to Ningbo Tuoxing Precision Casting Co., Ltd.," dated September 29, 2025.
[114] *Id.*
[115] *Id.*
[116] *Id*. at 3.
[117] *See* Rizhao Jintai's RFI response, "Answers to the Questions About CBP," dated October 12, 2025.
[118] *Id.*
[119] *Id.*
[120] *Id.*
[121] *Id.*
[122] *See* Sichuan Y&J's RFI response, "RE: EAPA 8183- Request for Information," dated October 10, 2025.
[123] *Id.*
[124] *Id*. at 1.
[125] *Id.*
[126] *Id*. at 3.

According to Sichuan Y&J, the parts it supplied to Greenbrier Central were produced by Yuhuan Haixu Machinery Co., Ltd.[127] The annual production capacity supplied to Greenbrier Central is [#s] parts.[128] The annual production capacity is calculated based on the maximum monthly output ([#s] units per month over ten months) of the company's production lines under normal operating conditions during the POI.[129] Sales to Greenbrier during the POI totaled [#s] units valued at $[#s], with [#s] units valued at $[#s] sold to Greenbrier Mexico.[130] On November 14, 2025, CBP issued an SFRI to Sichuan Y&J; however, CBP did not receive a response.[131]

<u>Supplier IV: ASF-K (subsidiary of Amsted Rail)</u>

On October 20, 2025, CBP sent an RFI to Supplier IV.[132] On December 1, 2025, CBP received ASF-K's timely response to the RFI, affirming that it is wholly owned by Amsted Rail.[133] ASF-K participates in Mexico's IMMEX Program whereby Amsted Rail sells subject merchandise to OEMs in Mexico also operating under the IMMEX program that then incorporate the freight rail couplers into a finished freight car and ultimately, a freight train.[134] ASF-K manufactures parts for the heavy-haul rail market, and the goods it manufacturers are for customers of and with the guidance and supply of raw materials from Amsted Rail.[135]

Regarding its relationship with Greenbrier: "Specifically, with respect to Gunderson GIMSA, the Company is a long-term customer of Amsted Rail.[136] ASF-K notes that it ships covered merchandise to other Greenbrier entities in Mexico but has limited this portion of its response to Gunderson GIMSA….[137] All sales which physically transit between ASF-K and Gunderson GIMSA are made by Amsted Rail to Greenbrier (in the United States), which results in the couplers to be sent to Gunderson GIMSA's maquiladora in Gimsa, Mexico from ASF-K's facility in Mexico.[138] … {A}t the time of sale, the coupler is **not** shipped from the United States to Gunderson GIMSA's maquiladora but shipped within Mexico."[139]

<u>Greenbrier Affiliate [Name]</u>

On December 9, 2025, CBP sent an RFI to a Greenbrier affiliate, [Name and Locations].[140] On December 29, 2025, CBP received the Greenbriar affiliate's

[127] *Id.* at 17.
[128] *Id.* at 21.
[129] *Id.*
[130] *Id.* at 24.
[131] *See* CBP's SRFI questionnaire, "EAPA 8183 – Supplemental Request for Information," dated November 14, 2025.
[132] *See* CBP letter, "RE: EAPA 8183 – Revised Request for Information," dated October 20, 2025.
[133] *See* Amsted Rail's RFI response, "EAPA Case No. 8183 – Request for Information Response Parts I through IV," dated December 1, 2025.
[134] *Id.* at 1-2.
[135] *Id.*
[136] *Id.* at 18.
[137] *Id.*
[138] *Id.*
[139] *Id.*
[140] *See* CBP letter to [Name], "RE: EAPA 8183 – Request for Information," dated December 9, 2025.

timely response to the RFI.[141] The RFI response indicates that the Greenbrier affiliate purchases FRCs directly from [Names].[142] Each railcar contains two couplers and there is one knuckle per coupler.[143] Generally, [Name] procures finished FRCs for use on railcars; thus, it does not have information regarding the origin of knuckles that are included in such couplers.[144] Sales of railcars into the United States are [

Transaction Process

].[147] Sales of [

Name and Process].[148] [

Name and Location Status].[149]

Voluntary Factual Information

On December 1, 2025, CBP received Greenbrier's timely submission of voluntary factual information, which included expert testimony regarding its IIT qualification and maintained that the railcars are exempt from entry requirements pursuant to 19 C.F.R. § 10.41(a) and 19 C.F.R. §§ 141.4(b)(3) and (b)(4).[150] Greenbrier claimed that "CBP has long established as practice that freight railcars are released into the United States under the IIT procedure without entry requirements and not as a part of a duty-free or informal entry process.[151] Carriers provide the data for the IITs on the inward cargo manifest, which includes all required information and serves as a request for clearance of the railcars as IITs.[152] As an example, the ACE {Automated Commercial Environment} rail manifest only requires that a freight railcar, regardless of ownership, is reported on the Rail Consist with the assumption that a railcar is covered by the IIT process."[153] Greenbrier also included a copy of Customs Directive 3550-075, Instructions for Handling the Entry of Locomotives, Railcars, and Other Railroad, dated March 7, 2000, which it claimed codified this process.[154]

Extension of the Determination as to Evasion Deadline

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[141] *See* Greenbrier affiliate's RFI response, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – [Name] Response To The Request For Information," dated December 29, 2025.
[142] *Id*. at 1.
[143] *Id.*
[144] *Id.*
[145] *Id.* at 2.
[146] *Id.*
[147] *Id.*
[148] *Id.*
[149] *Id.*
[150] *See* Greenbrier's voluntary submission of factual information, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Greenbrier Central LLC's Voluntary Submission Of Factual Information To Negate The Allegation Of Evasion," dated December 1, 2025.
[151] *Id.* at 4.
[152] *Id.*
[153] *Id.*
[154] *Id*. for Expert Bio and Customs Directive. CBP notes that the Customs Directive provided was replaced by guidance set forth in the August 2012 CBP Informed Compliance Publication on IIT (CBP IIT Handbook).

On December 10, 2025, pursuant to 19 U.S.C. § 1517(c)(1)(B), CBP notified parties to the investigation of a sixty (60) calendar day extension for the determination as to evasion, moving the original deadline of March 11, 2026 to May 11, 2026.[155] CBP determined that the investigation was extraordinarily complicated because of the number and complexity of the transactions to be investigated.[156] This extension allowed CBP time to fully analyze the voluminous documents on the record and provided time for CBP to solicit additional information from certain parties in the investigation.[157] It also allowed for adequate time for parties to submit written arguments and responses to written arguments.[158]

Other Documents on the Record

On December 11, 2025, the Alleger provided comments on the ASF-K RFI response[159] and on Greenbrier's voluntary information submission.[160] On January 12, 2026, the Alleger provided comments on the Greenbriar affiliate's RFI response.[161] On March 3, 2026, CBP placed a memo to file explaining the removal of certain information inadvertently placed on the record.[162]

Verification

On January 16, 2026, CBP sent a verification engagement letter and agenda to Greenbrier Central, providing information on the procedures CBP would take in verifying Greenbrier's record responses.[163] This verification took place at Greenbrier Central's premises at One Centerpoint Drive, Suite 200, Lake Oswego, Oregon 97035 from January 21, 2026 through January 23, 2026.[164] On January 20, 2026, the Alleger submitted pre-verification comments.[165]

During verification, as outlined in the Verification Report,[166] CBP confirmed Greenbrier's corporate structure and operations.[167] CBP also reviewed several sales transactions, tracing the movement of railcars starting from Greenbrier's Mexican manufacturing subsidiaries through to

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[155] *See* CBP's letter, "Notice of Extension of Determination as to Evasion," dated December 10. 2025.
[156] *Id.*
[157] *Id*.
[158] *Id.*
[159] *See* Alleger's letter, "EAPA Case No. 8183: Certain Freight Rail Couplers and Parts Thereof from Mexico & The People's Republic of China: Comments on ASF-K de Mexico S. de R.L. de C.V.'s Response to the Request for Information," dated December 11, 2025.
[160] *See* Alleger's letter, "EAPA Case No. 8183: Certain Freight Rail Couplers and Parts Thereof from Mexico & The People's Republic of China: Response to Greenbrier's Voluntary Submission," dated December 11, 2025.
[161] *See* Alleger's letter, "EAPA Case No. 8183: Certain Freight Rail Couplers and Parts Thereof from Mexico & The People's Republic of China: Comments on [Name] Response to the Request for Information," dated January 12, 2026.
[162] *See* CBP Memorandum to the File, "EAPA Case No. 8183 – Removal of February 13, 2026, Supplemental Document from the Administrative Record," dated March 3, 2026.
[163] *See* CBP's Verification Engagement Letter and Agenda, dated January 16, 2026.
[164] *Id.*
[165] *See* Alleger's letter, "EAPA Case No. 8183: Certain Freight Rail Couplers and Parts Thereof from Mexico and the People's Republic of China: Pre-Verification Comments for Greenbrier," dated January 20, 2026.
[166] *See* CBP'S On-Site Verification Report, dated February 27,2026 (Verification Report); *see also* Greenbrier Central Verification Exhibits, dated January 30, 2026.
[167] *Id*. at 2-4.

the final sale and delivery to the ultimate U.S. buyers.[168] CBP also reviewed the following related to FRCs: their placement on the railcars, their certification process, their sourcing, their inventory movement process, and their import process.[169] CBP validated the sales process and sales transactions between [Transaction] and the sources of the FRCs, namely [Names].[170] CBP also confirmed that new FRCs are attached to the [Transaction Movement][171]

Written Arguments

On December 5, 2025, CBP notified parties to the investigation of the extension of time for the written arguments,[172] and on February 24, 2026, CBP notified parties of the amended deadlines.[173] On March 12, 2026, CBP received timely written argument submissions from both Greenbrier and the Alleger.[174]

<u>Greenbrier Written Arguments</u>

Greenbrier contends that an EAPA investigation cannot lawfully extend to merchandise that was never formally entered and that the couplers attached to finished railcars do not evade the *FRC Orders*.[175] Greenbrier asserts that AD/CVD duties apply only to merchandise that enters for consumption, regardless of whether the merchandise falls within the written scope description.[176] Greenbrier's main arguments include: (1) EAPA authority is limited to merchandise entered for consumption, and, thus, should not encompass railcars or couplers exempt from entry requirements; (2) Couplers attached to exempt railcars are not subject to AD/CVD duties, as confirmed by pre-order discussions between Commerce and CBP, which Greenbrier relied upon in good faith; (3) Greenbrier's railcars qualify as duty-free freight cars under 19 C.F.R. § 141.4(b)(4); (4) Greenbrier's railcars also qualify as IITs and are excepted from entry under 19 C.F.R. § 141.4(b)(3); and (5) Alternatively, mounted couplers fall outside the scope of the *FRC Orders*.[177] Additionally, Greenbrier argues that no evasion exists with respect to consumption entries of loose couplers or parts because the EAPA Allegation addressed only railcars with attached couplers, not consumption entries of loose parts, and no misclassifications or unpaid duties exist on any consumption entries.[178]

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[168] *Id*. at 4-5
[169] *Id*. at 5-8.
[170] *Id.*
[171] *Id.*
[172] *See* CBP's notification email — "EAPA 8183: CBP Extension of Written Arguments Deadline," dated December 5, 2025.
[173] *See* CBP's notification email — "EAPA 8183: Written Arguments Deadline," dated February 24, 2026.
[174] *See* Greenbrier's Written Arguments submission, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Greenbrier's Submission of Written Arguments," dated March 12, 2026 (Greenbrier's Written Arguments); *see also* Alleger's Written Arguments submission, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China: Written Arguments of the Coalition of Freight Coupler Producers," dated March 12, 2026 (Alleger's Written Arguments).
[175] *See* Greenbrier's Written Arguments.
[176] *Id.*
[177] *Id.*
[178] *Id.*

Alleger Written Arguments

The Alleger argues that the evidence on the record demonstrates: (1) Greenbrier has effectively conceded evasion by entering merchandise subject to *FRC Orders* for consumption without filing type 03 entries, thereby avoiding payment of duties;[179] (2) Greenbrier's entry of railcars are ineligible for IIT status because the railcars were admitted into the United States for sale to a third party, not for use in international traffic;[180] 3) Greenbrier is knowingly importing railcars and FRCs in such a manner as to intentionally avoid paying duties pursuant to the *FRC Orders*, and Commerce's Final Scope Decision Memorandum of May 15, 2023 settled the issue by confirming that FRCs attached to freight railcars are included in the scope of the investigations and subject to duties;[181] 4) Greenbrier's railcars entered for leasing operations are not IIT's because leasing companies cannot enter rail cars as IITs because they have no insight or control as to whether the rail car remains in compliance with IIT requirements;[182] 5) The Alleger claims that, even if railcars were IITs, FRCs are not entitled to IIT status as accessories, since Commerce determined that a freight rail coupler is a distinct product, not part of the IIT's structure, and its function is unrelated to holding cargo or securing freight;[183] 6) FRCs are subject to duties and thus do not qualify for exemption under 19 C.F.R. § 141.4(b)(4), which requires that no duties are owed.[184] The Alleger concludes that Greenbrier's failure to pay AD/CVD duties for these products, which are explicitly covered by the scope of the AD/CVD orders, constitutes unlawful duty evasion.[185]

The Alleger further urges CBP to address the following exceptions to IIT and 19 C.F.R. § 141.4(b)(4), emphasizing that Greenbrier's and its Mexican affiliates' railcar transactions are: 1) sales for consumption; 2) not part of a continuous international route; 3) involved in leasing operations; 4) are entered into the country by a party other than the one using them as an IIT; and 5) that the FRCs themselves are not accessories to an IIT.[186] The Alleger asserts that these factors must be addressed in order to withstand judicial review at the Court of International Trade.[187]

Responses to Written Arguments

On March 27, 2026, CBP received timely responses to written arguments from both Greenbrier and the Alleger.[188]

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[179] *See* Alleger's Written Arguments at 4-6.
[180] *Id*. at 6-11 and 12-20.
[181] Id. at 12.
[182] *Id*. at 20-24.
[183] Id. at 24-34.
[184] *Id*. at 34-36.
[185] *Id*. at 2.
[186] *Id*. at 36-38.
[187] *Id*.
[188] *See* Greenbrier's rebuttal comments, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China – Greenbrier's Submission of Response to Written Arguments," dated March 27, 2026 (Greenbrier's Rebuttal). *See also* Alleger's rebuttal comments, "EAPA Case No. 8183: Certain Freight Rail Couplers And Parts Thereof From Mexico & The People's Republic Of China: Written Arguments Response of the Coalition of Freight Coupler Producers," dated March 27, 2026 (Alleger's Rebuttal).

Greenbrier's Responses to Written Arguments

The key points of Greenbrier's rebuttal are that there are no consumption entries of loose couplers or parts; therefore, non-consumption entries fall outside EAPA's jurisdictional scope, as EAPA's authority is limited by statute and regulation to investigating entries for consumption.[189] Greenbrier emphasizes the Commerce March 2, 2023 Memo regarding CBP and Commerce enforcement discussions and re-iterates that freight rail couplers attached to finished railcars are exempt from AD/CVD duties when the attached railcars qualify for exemption from entry requirements under 19 C.F.R. § 141.4(b)(3) (as IITs) or 19 C.F.R. § 141.4(b)(4) (as duty-free freight cars).[190]

Alleger's Responses to Written Arguments

The Alleger's key rebuttal points are that the regulatory requirements under 19 C.F.R. § 141.4(b)(3) and 19 C.F.R. § 141.4(b)(4) do not exempt rail cars with mounted FRCs from entry requirements.[191] The Alleger reiterates that the FRCs attached to the railcars are subject to duties,[192] arguing that even if rail cars were entitled to IIT status, the FRCs themselves are distinct articles of commerce (as explicitly determined by Commerce) and they are not entitled to informal entry as either an IIT or an accessory to an IIT.[193] The Alleger contests Greenbrier's claim that EAPA's authority is limited to merchandise that enters into the customs territory of the United States for consumption under 19 C.F.R. § 165.1.6, and therefore, this investigation should be limited to consumption entries.[194] The Alleger contends that evidence on the record indicates that Greenbrier entered the merchandise for consumption because Greenbrier entered the railcars for sale.[195] The Alleger concludes that an import for sale to a third party is considered an entry for consumption.[196]

III. Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion, CBP must "make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion." The term "evasion" is defined as "the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or

[189] *See* Greenbrier's Rebuttal at 8.
[190] *Id.* at 1.
[191] *See* Alleger's rebuttal.
[192] *Id.*
[193] *Id.*
[194] *Id.*
[195] *Id.*
[196] *Id.*

countervailing duties being reduced or not being applied with respect to the covered merchandise."[197]

The facts on the record of this case show that Greenbrier makes railcars, which have FRCs attached to them [Movement].[198] The railcars are [Transaction] and then [description of event].[199] Greenbrier has stated on the record that it does not have visibility into the ultimate U.S. customer's use of their railcars.[200] Record evidence also shows that the FRCs that [Movement] during the POI were primarily manufactured in either [Names].[201] More specifically, from May 2024 through September 2025, Greenbrier purchased approximately [#s] percent of FRCs by value from [Name] and about [#s] percent from [Name].[202]

Greenbrier maintains in its various RFI responses that it had no need to "enter" these railcars when they were imported into the United States because they qualified for exception from entry either due to IIT status or because they are freight rail cars on which no duty is owed under 19 C.F.R. §§ 141.4(b)(3) and (b)(4), respectively.[203] However, [Noun] seemingly believe the contrary. Per the Allegation, the [Noun from Name] stated: "[Noun] are not being entered as Type III entries at the border in order to avoid payment of antidumping and countervailing duty deposits."[204]

Nevertheless, the record also established that Commerce determined unequivocally in the *FRC Orders* that subject merchandise included FRCs, whether attached or not to railcars, despite the discussions included in various Commerce scope memoranda.[205] As Commerce stated in its Final Scope Memorandum: "Finally, while recognizing that the legal status of freight rail couplers attached to or mounted on railcars exempt from entry under 19 CFR 141.4(b)(3) and 19 CFR 141.4(b)(4) is a matter for CBP.... Consistent with our Preliminary Scope Decision Memorandum, we continue to find that these arguments pertain to the interpretation of regulations administered by CBP and, as such, are properly assessed by CBP, rather than Commerce. In these investigations, Commerce must establish the applicable scope and determine whether dumping or countervailable subsidization is occurring."[206] Further, in the Final Scope Decision Memorandum, Commerce found that "CBP's interpretation of its

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197 *See* 19 C.F.R. § 165.1.
198 *See, e.g.,* Greenbrier's 1st SRFI response, Greenbrier Central's 3rd SRFI response, Gunderson-GIMSA 3rd SRFI response.
199 *Id*.
200 *See* Greenbrier Central's 3rd SRFI response at 7.
201 *See* Gunderson-GIMSA 1st SRFI at 2 and exhibit S-1. *See also* Verification Exhibit 7.
202 *See* either Greenbrier Central's 2nd SRFI response at Exhibit 2S-3&4 or Gunderson-GIMSA 2nd SRFI response at Exhibit 2S-4&5.
203 *See, e.g.,* Greenbrier's 1st SRFI response, Greenbrier Central's 3rd SRFI response, Gunderson-GIMSA 3rd SRFI response.
204 *See* Allegation Supplement at Exhibit 4.
205 *See also* Commerce memos, contained in October 10th Greenbrier's EAPA Case Dismissal Request.
206 *See* October 10th Greenbrier's EAPA Case Dismissal Request at Attachment 1.

regulations and the applicable laws governing entry requirements into the United States is within CBP's purview."[207]

Commerce determined in the *FRC Orders* that the scope includes: "Subject freight railcar couplers and parts are included within the scope whether finished or unfinished, whether imported individually or with other subject or non-subject parts, whether assembled or unassembled, whether mounted or unmounted, or if joined with non-subject merchandise, such as other non-subject parts or a completed railcar."[208] Also, "Subject merchandise includes coupler parts as defined above that have been further processed or further assembled, including those coupler parts attached to a railcar in third countries."[209]

Accordingly, CBP believes there is substantial evidence that the Greenbrier FRCs at issue should have been formally entered into the United States and AD/CVD duties should have been paid on those entries, in accordance with the *FRC Orders*. First, Greenbrier entered railcars for [Transaction], without regard to their intended use, making them ineligible for IIT status under 19 C.F.R. § 141.4(b)(3). Second, because FRCs are subject merchandise in accordance with the *FRC Orders*, *i.e.*, "on which duties are owed," they do not qualify for the exception under 19 C.F.R. § 141.4(b)(4). Because Greenbrier erroneously claimed an exception from the requirement to make entry based on 19 C.F.R. §§ 141.4(b)(3) and 141.4(b)(4) when the FRCs crossed the border into the United States, no cash deposits were collected. CBP's position on why Greenbrier's railcars and FRCs fail to qualify for these exceptions from entry are discussed in depth below.

CBP's Position on 19 C.F.R. §§ 141.4(b)(3) and (b)(4)

Greenbrier argues that its railcars and attached FRCs were exempt from entry under 19 C.F.R. §§ 141.4(b)(3) and (b)(4). Although CBP recognizes that IITs and certain railway equipment may, under limited circumstances, qualify for exemptions from entry requirements, the record evidence demonstrates that Greenbrier imported the railcars at issue as part of [Action] and that duties were owed. Accordingly, CBP finds that the referenced exceptions from entry are inapplicable, and that the merchandise was required to be formally entered with applicable AD/CVD duties deposited.

<u>19 C.F.R. § 141.4(b)(3)</u>

One exception from the general rule that merchandise imported into the United States is required to be entered is for "instruments of international trade described in § 10.41a and § 10.41b(b) of this chapter…"[210] CBP determines that the railcars entered into the United States for purposes of sale to U.S. consumers do not qualify as an IIT; therefore, neither the railcars themselves, nor any affixed FRCs, qualify for this exception from entry as IITs.

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[207] Memorandum, Freight Rail Couplers from Mexico and the People's Republic of China: Final Scope Decision Memorandum (May 15, 2023).
[208] *See FRC Orders*.
[209] *See FRC Orders*.
[210] 19 C.F.R. § 141.4(b)(3).

What constitutes an instrument of international traffic is set forth in 19 C.F.R. § 10.41a(a). This includes "{l}ift vans, cargo vans, shipping tanks, pallets, caul boards, and cores for textile fabrics either loaded or empty, used in the shipment of merchandise in international traffic" and all other articles that the Secretary of Homeland Security may designate.[211] If the article *does not* appear in 19 C.F.R. § 10.41a(a), has not been designated as an IIT, nor is the normal equipment of, or accessory to, a "container as defined by the Customs Convention on Containers" to receive IIT status, "CBP requires that a *container or holder* must be substantial, suitable for and capable of repeated use, and used in significant numbers in international traffic."[212]

However, "{a}ny foreign owned locomotive or other railroad equipment… as an *element of a commercial transaction*... is subject to treatment as an importation of merchandise from a foreign country and a regular entry… will be made."[213] Pursuant to the 1972 Customs Convention on Containers, CBP generally "reserves the right not to grant temporary {duty-free} admission to containers which have been the subject of purchase, hire-purchase, lease or a contract of similar nature, concluded by a person resident or established in its territory."[214] This provision applies equally to "the temporary admission of accessories and equipment of containers."[215]

Additionally, per CBP regulations, "{e}mpty foreign railroad equipment shall be admitted to the United States without formal entry and payment of duty" if "{t}he passengers or goods to be loaded are to be transported directly to or through a foreign country."[216] Taken together, this means that freight rail car or other railroad equipment attached thereto, is not considered an IIT [Type of Transaction].[217]

Here, the freight railcars (attached to each other with the subject FRCs) were not intended to collect passengers or goods to be transported to or from a foreign country: they were produced in Mexico by Greenbrier's affiliates [Type of Transaction].[218] The [Transaction Type].[219] The railcars manufactured by [Name and Location], and by Gunderson-GIMSA in Coahuila, Mexico, are sold to [Name] and Greenbrier-GIMSA, respectively. These railcars are then sold by [Name] and Greenbrier-GIMSA to the ultimate U.S. customers immediately after crossing the United States border from Mexico.[220]

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[211] 19 C.F.R. § 10.41a(a)(1).
[212] *See* HQ H016491 (Oct 1., 2007); HQ 114150 (Dec. 12, 1997); HQ 107545 (May 7, 1985); Treas. Dec 71-159 Cust. B. & Dec. 296 (June 18, 1971); 99 Treas. Dec 533, No. 56247 (Aug. 26, 1964) (emphasis added).
[213] 19 C.F.R. § 10.41(d) (emphasis added).
[214] Chapter 3, article 3, paragraph 2
[215] Article 11, paragraph 1
[216] 19 C.F.R. § 123.12(b)(1). This regulation also includes an exception under (b)(2) for when "{t}he equipment is exempt from entry as provided in {19 C.F.R. § 141.4(b)(4)}. Greenbrier also claims that this section exempts them from the requirement to file entry. CBP will also address this argument in this Determination and why the FRCs in this investigation do not qualify for this exception, either.
[217] *See* CBP Rul. HQ 115532 (finding that generally the courts have defined commercial activity, in its broadest sense, to include any type of business or activity which is carried on for a profit.).
[218] *See, e.g.,* Greenbrier's 1st SRFI response, Greenbrier Central's 3rd SRFI response, Gunderson-GIMSA 3rd SRFI response.
[219] *Id.*
[220] *See* Verification Report at 3-4.

The terms of the sales agreement with [Noun] is further evidence of Greenbrier's intention, from the moment of purchase from the Mexican manufactures, was [Transaction]. In determining whether property or ownership in property has been transferred from a potential seller to a potential buyer, CBP considers whether the potential buyer has assumed the risk of loss for the imported merchandise and acquired title to the imported merchandise. Under the terms of the sales agreement [Transaction and Movement Process] once the railcars cross into the United States.[221] This means [Transaction Process].[222] Thus, the sales agreement with [Noun] itself indicates that, from the moment Greenbrier purchased the merchandise from the Mexican manufacturers, it intended that they be brought to the United States [Transaction].

That [Noun] could use these railcars, to which FRCs are attached, as an IIT does not alter that Greenbrier entered them into the United States [description of purpose]. Accordingly, the railcars are ineligible for exception from entry under 19 C.F.R. § 141.4(b)(3) and are required to be formally entered due to the AD/CVD duties owed on the affixed FRCs.

Therefore, because the freight railcars and the attached FRCs are produced in [countries] and were entered into the United States [Transaction], they do not qualify for IIT status and thus not subject to the exception under 19 C.F.R. § 141.4(b)(3) for the general requirement to file entry.

<u>19 C.F.R. § 141.4(b)(4)</u>

Greenbrier also points to another exception for the general rule that merchandise imported into the United States is required to be entered: railway locomotives and freight cars classified in HTSUS 8601, 8602, or 8606, on which "no duty is owed."[223] CBP determines that the FRCs attached to the railcars entering the United States are covered by an AD and/or CVD duty order; therefore, they do not qualify for this exception because duties are in fact owed on such railcars or freight cars.

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[221] *See, e.g.,* Greenbrier Central's 3rd SRFI response and Gunderson-GIMSA 3rd SRFI response.

[222] *See* 19 U.S.C. § 1484 and 19 C.F.R. §§ 141.1, 141.4(a)(3) and (4) — mandates all merchandise imported into the United States is required to be entered unless specifically excepted and that duties and the liability for payment accrue upon arrival of imported and reimported merchandise. Per CBP Guidance document, "Bona Fide Sales and Sales For Exportation to the United States," dated August 2005: Noting "bona fide sale" and a "sale for exportation to the United States" requires that a sale of merchandise for exportation to the United States occurs when the transfer of property from one party to another party for consideration. In determining whether property or ownership in property has been transferred from a potential seller to a potential buyer, CBP considers whether the potential buyer has assumed the risk of loss for the imported merchandise and acquired title to the imported merchandise.

[223] 19 C.F.R. § 141.4(b)(4).

To determine whether this exception applies, CBP must first (1) determine whether railcars, to which FRCs are affixed, are classifiable under HTSUS headings 8601, 8602, or 8606. If the railcars are covered by one of these headings, then (2) CBP must determine whether AD/CVD duties qualify as a duty owed for purposes of this exception.

Turning to the first question, because the subject merchandise consists of freight cars or railcars, CBP will assess whether the railcars are classifiable under HTSUS heading 8606 for "railway or tramway freight cars, not self-propelled." There are also no subheadings under heading 8606 to differentiate railcars with couplers from railcars without couplers. However, all of the subheadings under heading 8606 correspond with a general, column one rate of duty of 14 percent *ad valorem*.[224] Accordingly, CBP determines that the railcars, to which the FRCs are affixed, are classifiable under HTSUS heading 8606.

Having established that HTSUS heading 8606 is applicable, CBP turns to the second question: whether the AD/CVD duties applicable per the *FRC Orders* are considered a "duty" owed for purposes of § 141.4(b)(4). If the AD/CVD duties are considered a duty owed under (b)(4), then this exception from entry would not apply to the railcars.

It is well-established that the term "duty" includes "antidumping duty" and "countervailing duty" (AD/CVD) unless AD/CVD is expressly excepted. The AD/CVD statutes provide that AD/CVD is a "duty" that is imposed "in addition to *any other duty* imposed" on the imported merchandise.[225] AD/CVD duties are just that, a type of duty, and nothing in the AD/CVD duty statute suggests that they otherwise should be excepted from the plain meaning of "duty" as used in 19 C.F.R. § 141.4(b)(4). Nor does § 141.4(b)(4) itself carve out an exception for AD/CVD duties. Therefore, CBP determines that the term "duty" in 19 C.F.R. § 141.4(b)(4) encompasses AD/CVD duties.[226]

To conclude, CBP determines that the railcars are classifiable under HTSUS heading 8606. Additionally, the FRCs attached to these railcars are covered by an AD/CVD duty order and thus a duty "is owed" on the railcar, based on the value of the FRCs subject to the *FRC Orders*. Therefore, the exception from entry under 19 C.F.R. § 141.4(b)(4) does not apply to the covered merchandise in this case.

Additional Analysis

Greenbrier interprets Commerce's March 2, 2023, Memo as stating that CBP lacks the authority to administer the *FRC Orders* on couplers attached to freight railcars (which can be exempt from

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[224] Although HTSUS heading 8606 carries a general duty rate of 14 percent *ad valorem*, the subject railcars were entered under the United States-Mexico-Canada Agreement (USMCA) and therefore qualified for a free rate of duty upon satisfaction of the applicable USMCA requirements.
[225] *See* 19 U.S.C. §§ 1671(a) and 1673(2) (emphasis added).
[226] Greenbrier also states that its railcars produced in Mexico qualify for preferential duty-free treatment under the USMCA and therefore "no duty is owed" pursuant to § 141.4(b)(4). However, Chapter 10.10 states that "{e}ach Party reserves the right to apply its antidumping law and countervailing duty law to goods imported from the territory of any other Party. Antidumping law and countervailing law include, as appropriate for each Party, relevant statutes, legislative history, regulations, administrative practice, and judicial precedents. USMCA, art. 10.10, July 1, 2020, https://ustr.gov/sites/default/files/files/agreements/FTA/USMCA/Text/10_Trade_Remedies.pdf.

entry under IIT or 19 C.F.R. § 141.4(b)(4)).[227] However, this Memo merely addressed the practical challenges of administering AD/CVD orders on FRCs. Specifically, the Memo noted that administering the *FRC Orders* on FRCs attached to or integrated with railcars not formally entered would be very "difficult and burdensome from a legal and operational point of view."[228] However, highlighting some challenges in enforcement does not mean that CBP lacks the authority to enforce the *FRC Orders*. Therefore, Greenbrier's reliance on this Memo is misplaced. Moreover, even though Commerce noted challenges to the administration of the *FRC Orders*, Commerce still determined that FRCs attached to rail cars were subject to the *FRC Orders*. Indeed, any administrability challenges are caused by importers like Greenbrier who do not properly declare the merchandise as in scope and file required entry documentation.

Greenbrier also makes the argument that CBP's ACE Rail Consist information predisposes that all railcars are IIT.[229] Although the CBP ACE Rail Consist guidance supports identifying empty equipment as IITs, the guidance is primarily meant to instruct Rail Consist users how to enter information within the Electronic Data Interchange (EDI) environment.[230] This process does not affect or alter IIT regulations or the entry requirements for merchandise entering the United States.

Finally, Greenbrier asserts that, because they did not file entry with respect to the covered merchandise, there is nothing for EAPA to investigate and the matter falls outside CBP's authority. However, CBP finds that a material omission occurs when an importer fails to comply with the entry filing requirements which results in nonpayment of AD/CVD. The importer cannot argue that the EAPA investigation is precluded because there are no entries for consumption, when the reason there are no consumption entries is the importer's own material omission to file entries for covered merchandise. Accordingly, the failure to file an entry for consumption does not prevent CBP from a finding of evasion or absolve Greenbrier from the obligation to pay duties.

Under 19 U.S.C. § 1517(a)(5), evasion is defined as entering covered merchandise into the United States "by means of any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise."[231] CBP determines that Greenbrier was responsible for filing entry and paying applicable AD/CVD duties when importing covered merchandise into the United States, and failure to do so was a material omission that resulted in nonpayment of AD/CVD duties.[232]

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[227] *See* October 10th Greenbrier's EAPA Case Dismissal Request at Attachment 3.
[228] *Id.*
[229] *See* Greenbrier's voluntary submission of factual information.
[230] *See* CBP guidance, "Automated Commercial Environment: 358 Customs Consist Information," dated November 2025.
[231] *See* 19 U.S.C. § 1517(a)(5).
[232] *See* Section 484(a)(1) of the Tariff Act of 1930, as amended (19 U.S.C. § 1484(a)(1)), requires the importer of record "shall, using reasonable care...make entry...." *See also* 19 C.F.R. § 171 App. B(D)(6) ("All parties, including importers of record or their agents, are required to exercise reasonable care in fulfilling their responsibilities involving entry of merchandise."). Reasonable care could include seeking guidance from the Customs Service through the pre-importation or formal ruling program; consulting with a Customs broker, a Customs consultant, or a public accountant or an attorney; or using in-house employees such as counsel, a Customs administrator, or if

IV. <u>Actions Taken Pursuant to the Affirmative Determination as to Evasion</u>

Considering CBP's determination that Greenbrier failed to enter merchandise into the customs territory of the United States that was subject to entry requirements and on which AD/CVD duties should have been paid, CBP finds that there is substantial evidence of evasion by Greenbrier. Although the merchandise was previously admitted without formal entry, 19 C.F.R. § 10.41(d) provides that railcar equipment brought to the United States as an element of a commercial transaction is subject to treatment as an importation of merchandise for which an entry must be made. Additionally, "CBP may require a formal consumption or appraisement entry for any merchandise if deemed necessary for import admissibility enforcement purposes, revenue protection; or the efficient conduct of customs business."[233] Accordingly, CBP may require Greenbrier to file appropriate entry documentation and tender applicable AD/CVD duties for the covered merchandise admitted during the POI.

Pursuant to its authorities under 19 U.S.C. §§1484, and 19 C.F.R. § 142.13, CBP will henceforth require formal entries for FRCs subject to the *FRC Orders*, requiring the importer to file formal consumption entries for the railcars, to which the FRCs are affixed, and submit proper accompanying documentation and all AD/CVD duties. Greenbrier is required to rectify any non-compliance with provisions of admission railcars, to which FRCs are affixed, that entered the United States during the POI.

Additionally, pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP shall suspend or continue to suspend the entries covered by this investigation, until instructed to liquidate. For those entries previously extended in accordance with the interim measures, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries. CBP may also evaluate Greenbrier's continuous bond in accordance with CBP's policies. None of the above actions preclude CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,

Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
Office of Trade

valuation is an issue, a corporate controller, who have experience and knowledge of customs laws, regulations, and procedures.

[233] 19 C.F.R. § 143.22.